

changes to its rules and regulations requiring Georgia Power to ensure that new customers over 100 MW pay their cost of service through minimum billing requirements, long term contracts with sizable fees in the case of early termination, and other terms and conditions for which the GPSC can quickly and efficiently review each contract on a non-discriminatory basis. The Order is included as Attachment A. The GPSC is also currently conducting an all-source capacity certification proceeding to consider meeting the future needs of Georgia Power customers through cost-effective thermal, renewable, and battery storage technologies. As part of this proceeding, the GPSC is further analyzing load forecasting it considered earlier this year in the 2025 Integrated Resource Plan (IRP). The Procedural and Scheduling Order for the all-source capacity certification proceeding is included as Attachment B.

The GPSC affirms that it is best positioned to ensure the timely and orderly interconnection of large loads with its current policy and regulatory tools. The GPSC has acted swiftly and prudently in response to unprecedented new demand forecasts. In the 2022 IRP the estimated load growth for Georgia Power was less than 400 new megawatts of generation over the next seven years. An interim IRP filed in 2023 allowed the GPSC to verify and take immediate action to meet a 15-fold increase in demand needs, with large loads as the primary driver. The vertically integrated market structure in Georgia allows the GPSC to oversee every facet of this load growth and adjust to market conditions as they emerge.

The GPSC is able to connect with constituents and stakeholders to ensure that timely and orderly interconnection of large loads meets local needs. Georgia is one of the fastest growing markets for new data centers, as well as other large scale industrial facilities. The GPSC is able to support this economic development through engagement with businesses looking to locate in Georgia to ensure that the size and types of resources, opportunities for load flexibility, and rate

designs meet the desired specifications. As communities become more engaged in attracting facilities, the GPSC has a direct responsibility to serve the public interest of Georgians.

The GPSC understands the national importance of a timely and orderly interconnection of large loads. Through its leadership at the National Association of Regulatory Utility Commissioners and participation in proceedings at FERC, GPSC Commissioners have continued to stress the economic and national security necessity of American leadership in artificial intelligence and other energy-intensive twenty-first technologies essential to innovation. The GPSC understands that states in other market structures may require different interventions from FERC. The GPSC will continue to collaborate towards shared goals without the need for further Federal action in Georgia. The GPSC looks forward to Georgia's continued leadership with its successful strategies to ensure the timely and orderly interconnection of large loads.

Submitted this 19th day of November, 2025.

GEORGIA PUBLIC SERVICE
COMMISSION



Chris Collado
Attorney
Georgia Public Service Commission
244 Washington Street, SW
Atlanta, Georgia 30334-5701

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ORDER ON GEORGIA POWER COMPANY'S REVISION TO RULES AND REGULATIONS TARIFF COMPLIANCE FILING

Docket No. 44280

In Re: Georgia Power Company's 2022 Rate Case

I. BACKGROUND

On December 11, 2024, Georgia Power Company ("Company" or "Georgia Power") filed a request for approval of revisions to the Company's Rules and Regulations in Docket Number 44280. The rule changes apply to new customers with 100 megawatts ("MW") or more of load connecting to Georgia Power's system, requiring additional terms and conditions for those customers in order to allow the Company to appropriately assign costs to the customer. The proposed revisions allow for minimum billing requirements and longer contract term lengths for the new customers over 100 MW of load.

On January 28, 2025, the Georgia Public Service Commission ("Commission") approved the Company's request with the following requirements:

- The Company shall exercise the discretion under the Rules and Regulations changes in a manner designed to protect existing customers from bearing any of the costs of adding these large customers.
- The Company shall provide Staff with the terms and conditions intended to implement the revisions to the Company's rules and regulations, and the criteria for applying such terms and conditions, prior to utilizing them for contracting.
- The Company shall file the complete contract and associated exhibits, attachments, terms and conditions on all new contracts within 30 days of execution.
- The Company shall make a compliance filing of the relevant tariffs for applicable customers to reflect the changes to the rules and regulations.

- The Commission shall continue to review the issue and may modify the rules and regulations or take other actions necessary to protect the Company's customers. Staff reserves the right to recommend further amendments to the Company's rules and regulations.

On February 28, 2025, the Company filed revisions to ten existing tariffs with a proposed effective date of April 1, 2025, for applicable customers to reflect the changes to the rules and regulations in compliance with the Commission's January 28, 2025, Order (the "Revision Approval Order").

On March 11, 2025, the Company provided Staff with draft terms and conditions intended to implement the revisions to the Company's rules and regulations, and criteria for applying such terms and conditions.

On March 19, 2025, the Company filed a revised TOU-SC-15 tariff to incorporate some refinements the Company identified during the Commission Staff's review of the tariffs.

On April 4, 2025, the Company filed a second revision for TOU-SC-15 with additional refinements in the Monthly Access Charge Option section of the tariff to clarify minimum bill and early termination requirements.

II. FINDINGS OF FACT

Under the draft terms and conditions, customers would pay the higher of tariffed rates or a minimum bill amount each billing period they are a customer. If the customer ended the contract early, the customer would be liable for the minimum bill amounts (not tariffed rate amounts) for each period for the remaining term of the contract. The tariffed rates would be subject to future review and modification by the Commission using normal ratemaking processes. However, the minimum bill amounts would not.

The Company has provided Staff with a framework for determining minimum bills, but not a definitive calculation that Staff can replicate. Under this framework, the minimum bill amounts would be set to recover the transmission and generation costs being incurred to serve the new large-load customers. Conceptually, this framework appears to be reasonable; however, Staff has not yet seen how the Company intends to apply the framework in practice. Due to the uncertainty of how the framework will be applied, Staff cannot determine whether the minimum bill framework will actually result in amounts that are reasonable and appropriate without reviewing the actual amounts negotiated for customers.

Staff recommended that the Commission issue an order approving the revised tariffs with the following provisions:

- 1) Staff will continue to review the tariffed rates and can recommend that the rates be increased should Staff deem such recommendation appropriate.

- 2) The Commission retains the ability to modify the tariffed rates as allowed under Georgia law.
- 3) Staff has reviewed and recommended approval of the large load contracting framework for the terms and conditions implementing the revisions to the Company's Rules and Regulations approved by the Commission in the Revision Approval Order. The terms and conditions of each large load contract including the minimum bill, termination, and collateral provisions will apply this framework. To the extent that the actual language in a contract differs from the language in the draft terms and conditions provided to Staff, Staff may object to such language if Staff deems that such modification is substantive and does not adequately protect existing customers from bearing any of the costs of adding the customer. The terms and conditions shall include language that if the tariffed rates are increased then the customer will be responsible to pay the new higher rates.
- 4) Commission Staff has reviewed the large load contracting framework and the minimum bill methodology implementing the revisions to the Company's Rules and Regulations approved by the Commission in the Revision Approval Order. Conceptually, this framework appears to be reasonable; however, Staff reserves the ability to review how it is applied in practice and Staff may object to a minimum bill amount if Staff deems that it is insufficient.
- 5) As defined in the revisions to the Rules and Regulations (100 MW or greater at one or more premises located on one tract or contiguous tracts of land), the Company will file each such contract with the Commission at least thirty (30) days prior to execution of the contract. At the time of such filing, the Company will provide Commission Staff documentation demonstrating that the contract complies with the requirements of the Revision Approval Order. Once filed, Commission Staff may raise objections to the contract, and the Company and Commission Staff will work together in good faith to resolve any such objections. If Staff does not file an objection within thirty (30) days of the filing of the contract, the contract shall be deemed approved. If Staff files an objection, the contract shall be approved if the Commission takes no action within thirty (30) days after the Staff's filing. After the first twelve (12) executed large load contracts have been filed, Staff and the Company shall meet in good faith to discuss whether this process should be modified.
- 6) The Company will file all executed large load contracts with the Commission as required by the Revision Approval Order.
- 7) At least annually, the Company will update inputs to the minimum bill calculation. Whenever the Company updates inputs to the minimum bill calculation, the Company shall notify Staff of the updates and shall provide Staff with an updated cost model.
- 8) The Commission Staff may recommend that the Commission modify how the Company calculates minimum bill amounts for prospective contracts.

III. SUMMARY

At the Commission's April 10, 2025, Energy Committee meeting, Staff recommended the Commission approve Staff's recommendation as a fair resolution of the issues presented in the Georgia Power Company's Revision to Rules and Regulations Tariff Compliance Filing.

At its April 15, 2025, Administrative Session, the Commission voted to approve Staff's recommendation.

* * * * *

WHEREFORE IT IS ORDERED, that Staff's recommendations on Georgia Power Company's Revision to Rules and Regulations Tariff Compliance Filing, are hereby adopted.

ORDERED FURTHER, that the Commission approves the updates to the Company's tariffs and the large load contracting framework for the terms and conditions implementing the revisions to the Company's Rules and Regulations as approved in the Revision Approval Order.

ORDERED FURTHER, that Staff will continue to review the tariffed rates and can recommend that the rates be increased should Staff deem such recommendation appropriate.

ORDERED FURTHER, that the Commission retains the ability to modify the tariffed rates as allowed under Georgia law.

ORDERED FURTHER, that the terms and conditions of each large load contract including the minimum bill, termination, and collateral provisions will apply the framework in the same manner as provided and demonstrated to Staff. To the extent that the actual language in a contract differs from the language in the draft terms and conditions provided to Staff, Staff may object to such language if Staff deems that such modification is substantive and does not adequately protect existing customers from bearing any of the costs of adding the customer. The terms and conditions shall include language that if the tariffed rates are increased then the customer will be responsible for paying the new higher rates.

ORDERED FURTHER, that Staff reserves the ability to review how the large load contracting framework and the minimum bill methodology implementing the revisions to the Company's Rules and Regulations is applied in practice and Staff may object to a minimum bill amount if Staff deems that it is insufficient.

ORDERED FURTHER, that as defined in the revisions to the Rules and Regulations (100 MW or greater at one or more premises located on one tract or contiguous tracts of land), the Company will file each such contract with the Commission at least thirty (30) days prior to execution of the contract. At the time of such filing, the Company will provide Commission Staff documentation demonstrating that the contract complies with the requirements of the Revision Approval Order. Once filed, Commission Staff may raise objections to the contract, and the Company and Commission Staff will work together in good faith to resolve any such objections.

If Staff does not file an objection within thirty (30) days of the filing of the contract, the contract shall be deemed approved. If Staff files an objection, the contract shall be approved if the Commission takes no action within thirty (30) days after the Staff's filing. After the first twelve (12) executed large load contracts have been filed, Staff and the Company shall meet in good faith to discuss whether this process should be modified.

ORDERED FURTHER, that the Company will file all executed large load contracts with the Commission as required by the Revision Approval Order.

ORDERED FURTHER, that at least annually, the Company will update inputs to the minimum bill calculation. Whenever the Company updates inputs to the minimum bill calculation, the Company shall notify Staff of the updates and shall provide Staff with an updated cost model.

ORDERED FURTHER, that the Commission Staff may recommend that the Commission modify how the Company calculates minimum bill amounts for prospective contracts.

ORDERED FURTHER, that in implementing the tariffs and the large load contracting framework, the Company shall continue to exercise the discretion under the Rules and Regulations revisions in a manner designed to protect existing customers from bearing any of the costs of adding large load customers 100 MW or greater, including with respect to the minimum bill, termination, and collateral provisions established for these large load customers.

ORDERED FURTHER, that a motion for reconsideration, rehearing, oral argument, or any other motion shall not stay the effective date of this Order unless otherwise ordered by the Commission.

ORDERED FURTHER, that jurisdiction over this matter is expressly retained for the purpose of entering such further Order or Orders as this Commission may deem just and proper.

The above by the action of the Commission in the Administrative Session on the 15th day of April 2025.

SALLIE TANNER
EXECUTIVE SECRETARY

JASON SHAW
CHAIRMAN

DATE

DATE

COMMISSIONERS:

JASON SHAW, Chairman
FITZ JOHNSON, Vice-Chairman
TIM G. ECHOLS
LAUREN “BUBBA” McDONALD
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PROCEDURAL AND SCHEDULING ORDER

Docket No. 56298

GEORGIA POWER COMPANY’S APPLICATION FOR THE CERTIFICATION OF CAPACITY FROM THE 2029-2031 ALL-SOURCE RFP

Docket No. 56310

GEORGIA POWER COMPANY’S APPLICATION FOR THE CERTIFICATION OF CAPACITY SUPPLEMENTAL RESOURCES

The Georgia Public Service Commission "Commission") hereby issues this Procedural and Scheduling Order in accordance with the authority and duty conferred upon it by the Integrated Resource Plan Act (“IRP Act”), O.C.G.A. § 46-3A-1 et seq. as well as Commission Utility Rule Chapter 515-3-4, Integrated Resource Planning, and for the purpose of scheduling pleadings and a hearing to consider the matters described herein. Notification of the following matter is hereby given:

I. BACKGROUND

In its Order Adopting Stipulation in Docket No. 44160 (“2022 IRP Order”), regarding Georgia Power Company’s (“Georgia Power” or “Company”) 2022 Integrated Resource Plan, the Commission approved a Request for Proposals (“RFP”) soliciting capacity for the years 2029-2031. Georgia Power’s 2029-2031 All-Source Capacity RFP was required to follow the solicitation, product requirements, regulatory accommodations, and schedule found the RFP documents approved by the Commission on June 18, 2024.

On July 30, 2025, Georgia Power filed an Application for the Certification of the 2029-2031 All-Source Capacity generating resources requesting that the Commission issue an order granting a

Docket Nos. 56298 and 56310, GPC 2029-2031 All-Source RFP and Supp. Resources

Procedural and Scheduling Order

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certificate of public convenience and necessity (“Certificate”) for the selected generation resources.

In the Company’s 2025 Integrated Resource Plan, in Docket No. 56002, the Commission approved a stipulation that stated that “the Parties are aware that the Load Forecast is largely driven by the anticipated growth from only one customer class for which there is a lack of historic information to inform many of the assumptions used in the forecast” and therefore required, among other things, that:

- a. The Company and Staff shall work collaboratively to modify or refine the Load Forecast, including methodologies, as additional experience and information is received. For those reasons, and independent of any conclusions stipulated in paragraph 2 of the Stipulation, for the purposes of the 2029-2031 All-Source Certification Proceeding, the Company and Staff shall update the methodologies as they each determine to be appropriate, and Staff may propose that the Commission modify the methodology to include the materialization of executed Contracts for Electric Service in determining the Load Forecast.
- b. The Company will continue its quarterly filings of Large Load Economic Development Reports and will include in each quarterly report as additional information the date that any new project enters the large load pipeline, the announced load of any new project entering the large load pipeline, and new large load projects that have entered into a Contract for Electric Service.
- c. Georgia Power shall update the capacity need in the 2029-2031 All-Source Certification Proceeding in October 2025 with the B2026 Load Forecast, shall file additional Load Forecast updates in February 2027 with the B2027 Load Forecast, and as part of the 2028 IRP.
- d. The Company shall be authorized to seek certification of up to 8,500 MW of capacity from the 2029-2031 All Source Capacity RFP. The Company agrees to provide generation procurement options to meet generation needs of at least 6,000 MW and up to 8,500 MW necessary to meet Georgia Power system demand. Upon consideration of the Company’s updated October 2025 Load Forecast, as well as consideration of any Staff-proposed Load Forecast, the Commission can then appropriately determine necessary generation resources to certify as part of the 2029-2031 All-Source Capacity RFP certification proceeding.

On July 30, 2025, Georgia Power filed an Application for the Certification of Supplemental Resources to be added in the years 2028-2031, representing capacity potentially available outside of the 2029-2031 All-Source Capacity RFP process. As similar issues are involved, and a Company-wide resource portfolio is under consideration, the All-Source and Supplemental Resources dockets will be considered concurrently per the schedule below.

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To expedite the schedule in these certification proceedings, it is necessary for Georgia Power to file its updated capacity need and B2026 Load Forecast (with associated models, workpapers, calculations and assumptions) no later than September 17, 2025. Likewise, the response time for discovery requests will be shortened to 15 days and the Company will pay for, and cause to be filed, expedited hearing transcripts.

Issues Involved

Pursuant to O.C.G.A. § 46-3A-3(a), after January 31, 1992, no utility shall commence the construction of an electric plant, sell an existing plant or any portion thereof which is included in the retail rate base or which has been certified, enter into a long-term purchase of electric power, or make expenditures for a demand-side capacity option for serving the utility's Georgia retail customers without having first obtained from the commission a certificate that public convenience and necessity requires, or will require, such construction, sale, purchase, or expenditure.

The issues to be addressed shall include those which are required pursuant to the IRP Act, O.C.G.A. § 46-3A-1 et seq., and the Commission's implementation of Rule 515-3-4 as well as all other related issues this Commission deems appropriate. Additional issues shall include:

Should the Commission issue an order approving, denying, or modifying the requests made by the Company in its July 30, 2025 Applications for approval of capacity from the All-Source RFP and from Supplemental Resources identified by the Company outside of the RFP process?

After considering the Company's updated B2026 Load Forecast, as well as considering any Staff-proposed Load Forecast or modification or the load forecast or modification proposed by any intervenor, which generation resources need to be certified in this consolidated proceeding?

Are the costs associated with Georgia Power's requests reasonable?

Do the supplemental resources, identified outside of an RFP process, provide extraordinary advantage to ratepayers, and should Commission discretion be exercised in approving these capacity resources?

If a portfolio of resources is developed from capacity available from the All-Source RFP and the Company-identified supplemental resources, what is the optimal portfolio to maximize benefits to ratepayers?

Are the alternative terms and contract considerations for the supplemental resources power purchase agreements reasonable?

II. PRELIMINARY DIRECTIVES

The Commission orders this Procedural and Scheduling Order to establish discovery procedures and establish a hearing schedule. The Public Interest Advocacy (“PIA”) Staff is appointed as the agent for the Commission for discovery purposes. Georgia Power is hereby made a party and shall be bound by the Commission’s rulings in this docket and is directed to publish notice of this proceeding.

Pursuant to the Commission’s Utility Rule 515-2-1-.04(3), Georgia Power is directed to give first notice of the proceedings in this docket no later than 30 days after payment of the Certification Fee.

These proceedings shall be considered as a contested case under O.C.G.A. § 50-13-13. These proceedings also encompass complex litigation as that term is used in O.C.G.A. § 9-11-33(a) and discovery procedures apply accordingly.

Pursuant to O.C.G.A. § 50-13-13, this proceeding shall be considered a contested case. As such, the Commission hereby designates the following staff members to act as PIA Staff in this proceeding:

Robert Trokey
Steve Roetger
Joseph Schneider
Jason Forsythe
Tom Newsome
Jamie Barber
John Kaduk
Bobby Iseley
Justin Pawluk
Chris Collado

The PIA Staff shall be responsible for performing an independent evaluation of the filed case from the standpoint of promoting the public interest and just and reasonable rates and advocating for that position. The PIA Staff is considered a party to the case and may negotiate settlements with other parties, in the public interest.

The Commission authorizes the PIA Staff to issue discovery pursuant to O.C.G.A. 46-2-57(a). The PIA Staff may conduct depositions and use any other methods of formal and informal discovery in this docket. The use of any informal discovery methods shall not augment or abridge existing discovery rights and responsibilities. Due to the expedited schedule in these proceedings, the response time for discovery requests will be shortened to 15 days.

The Commission hereby designates the following staff members to act as Commissioner Advisory Staff in these proceedings:

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Nancy Gibson, Keimani Harvey, Ben Deitchman, Shemetha Jones, William Threatt and Alicia McBride

III. HEARING SCHEDULE, FILING DATES AND PROCEDURES

July 30, 2025

Georgia Power filed an Application requesting Certification of capacity resources from the 2029-2031 All-Source Capacity RFP (Docket No. 56298) and Company-identified supplemental resources (Docket No. 56310).

August 15, 2025

Georgia Power shall pre-file direct testimony on all issues in Docket No. 56298, except the new load forecast and the amount of capacity to be certified, and shall pre-file direct testimony in Docket 56310 by 4:00 p.m.

August 19, 2025

At the regularly scheduled Administrative Session, the Commission will establish the fees in these dockets pursuant to O.C.G.A. § 46-3A-5(c).

September 17, 2025

Georgia Power shall update the capacity need in the 2029-2031 All-Source Certification Proceeding with the B2026 Load Forecast and shall file all models, workpapers, calculations and supporting material associated with its B2026 Load Forecast including, but not limited to, its Load Realization Model.

Georgia Power shall pre-file direct testimony in Docket 56298 on the new load forecast and the amount of capacity requested to be certified by 4:00 p.m.

Georgia Power shall remit the fees for these proceedings.

October 21-23, 2025

Immediately following the Commission's Regularly Scheduled Administrative Session, the Commission will hear applications to intervene and any objections thereto, and any motions concerning the utilities pre-filed testimony and other appropriate motions. Following these preliminary matters, the Commission will conduct hearings on the direct case of Georgia Power in Docket Nos. 56298 and 56310.

November 12, 2025

Staff and Interveners shall pre-file direct testimony in Docket Nos. 56298 and 56310 by 4:00 p.m.

November 26, 2025

Georgia Power may file any pre-filed rebuttal testimony in Docket Nos. 56298 and 56310 by 4:00 p.m.

December 10-12, 2025

Commencing at 9:30 a.m., the Commission will hear any motions concerning testimony and other appropriate motions. Following these preliminary matters, the Commission will conduct hearings on the direct testimony of Staff and Intervenors followed by any rebuttal testimony filed by Georgia Power Company in Docket No. 56298 and 56310.

December 16, 2025

All briefs and/or proposed orders shall be filed with the Commission by 4:00 p.m.

December 19, 2025

Commencing at 9:30 a.m. at a specially scheduled Energy Committee, the Commission will hear from parties.

December 19, 2025

At a specially scheduled Administrative Session immediately following the special Energy Committee, the Commission will render a decision in Docket No. 56298 and 56310.

Statutory Deadline for Commission Order

The Statutory deadline for a certificate review is 180 days after the utility remits the fee, pursuant to O.C.G.A. § 46-3A-05(c). As set forth above, Georgia Power will remit its fee on September 17, 2025; therefore, the statutory deadline is March 16, 2026.

INTERVENTION AND HEARING PROCEDURES

1. **Intervention**

Intervention Period

- (a) Any person or party, on whom a statute does not confer an unconditional right to intervene, must file an application for leave to intervene within 30 days following the first published notice of the proceeding. Pursuant to Rule 515-2-1-.04(3), Georgia Power will be directed to give first notice of its proceedings in this case not later than September 19, 2025.

Application Requirements

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- (b) In addition to the requirements prescribed by O.C.G.A. § 46-2-59 for applications for leave to intervene, the application must (1) identify other intervening parties or intervening party applications whose interest is similar to that of the applicant, along with an explanation of why the identified intervening party or intervening party applicant will not adequately represent the applicant's interest; and (2) state the applicant's present intention to submit direct testimony and by whom and on what subject. The requirements identified herein shall constitute a continuing obligation of the applicant or intervening party.

Late Applications for Intervention

- (c) Any application for leave to intervene filed late must state the reason why such application was not submitted within 30 days of first published notice. Objections to late intervention applications must be filed in conformance with the requirements of O.C.G.A. § 46-2-59-(d).

Rulings on Intervention Applications

- (d) The Commission will take up and rule on applications for leave to intervene at the first hearing date set in this docket.

Procedures and Forms for Making an Application to Intervene

- (e) Applications to intervene and Commission approval thereof are covered by Official Code of Georgia Annotated § 46-2-59, and the Commission's Utility Rule 515-2-1-.06. Each applicant shall submit their application to intervene to the Commission, addressed to the Executive Secretary, Ms. Sallie Tanner, 244 Washington St. S.W., Atlanta, Georgia 30334-5701.

In addition, each applicant shall submit a copy of their application to Georgia Power¹, and all other parties who have applied to intervene, and submit a Certificate of Service to the Commission certifying that these copies have been served on the other parties. To obtain a list of other applicants to intervene, contact Ms. Quawanda Boyer, Georgia Public Service Commission, 244 Washington St., S.W., Atlanta, Georgia 30334-5701, (Telephone: (404) 656-0977).

2. Service

Each party has the responsibility to serve copies of any documents filed with the Commission upon each intervenor and intervenor applicant. Furthermore, in the case of documents filed prior to the deadline for intervention established above, copies shall also be served upon each party indicated in the Certificate of Service accompanying this Order.

3. Witnesses' Testimony

¹ Georgia Power Company, as the applicant in its docket, is the party of record upon which applications to intervene must be served. Failure to serve the applicant, or any other party, tolls a fifteen (15) day limit for objections to interventions until this defect is corrected.

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- (a) Summations of direct testimony will take no longer than fifteen (15) minutes or, at the discretion of the Commission, no longer than thirty (30) minutes.
- (b) Summations should be limited to testimony and exhibits in the pre-filed testimony.
- (c) Demonstrative handouts intended to be used during summations of the pre-filed testimony or in opening or closing statements, if applicable, must be pre-filed at least five (5) days prior to the hearing and must be limited to the scope of the testimony and exhibits in the pre-filed testimony.
- (d) Except for good cause shown, corrections to testimony must be pre-filed at least five (5) days prior to the hearing.
- (e) In the absence of a valid objection made and sustained to pre-filed testimony, the pre-filed testimony and exhibits, with corrections, will be admitted into the record as if orally given prior to the witness' summation, subject to a motion to strike after admission or other relevant objection.
- (f) Where the testimony of a panel of witnesses is presented, cross-examination may either be addressed to the panel, in which case any member of the panel may answer, or cross-examination may be addressed to an individual panel member, in which case that panel member shall give the answer; provided, however, that any other panel member shall be allowed to supplement the answer given.
- (g) Motions to strike any portion of pre-filed testimony must be filed at least two days prior to the hearing.
- (h) Any individual that presents testimony during this proceeding may not conduct cross examination of other parties.

4. Hearing Exhibits

For the record in all hearings, it shall be the responsibility of the parties sponsoring any hearing exhibits to ensure that the Hearing Reporter, all parties of record, Commissioners, and Advisory Staff receive copies of the hearing exhibits at the time of introducing the exhibits at the hearings. (Exhibits filed with pre-filed testimony should already have been provided, as per Commission Rule 515-2-1-.04(3).)

Specialized Testimony and Assistance

O.C.G.A. § 46-2-33(a) provides that the cost to the Commission of providing reasonably necessary specialized testimony and assistance in proceedings initiated by a utility shall be charged to the affected utility. It further provides that, with certain exceptions, the amount of such charges shall not exceed \$297,646 per case per year except for utility rate cases, generation construction monitoring, integrated resource planning cases, and generation certification cases, to the extent

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such amount is not also being recovered pursuant to an order issued under subsection (c) of GA Code Section 46-3A-5, which shall not exceed \$892,939 per case per year. O.C.G.A. § 46-2-33(b) provides that at the time the Commission determines that specialized testimony and assistance is required, the Commission shall issue an order setting forth the scope and budget for such testimony and assistance.

O.C.G.A. § 46-2-33(b) provides that all invoices relating to the testimony and assistance shall be subject to Commission review and approval, and no utility shall be required to pay any invoice not approved by the Commission. O.C.G.A. § 46-2-33(c) provides that the amounts paid by regulated companies under this Code section shall be deemed a necessary cost of providing service, and the utility shall be entitled to recover the full amount of any costs charged to the utility pursuant to this Code section. O.C.G.A. § 46-2-33(c) further provides that, at the election of the utility, the utility shall be entitled to recover all such costs promptly through a reasonably designed rider designated for such purpose.

O.C.G.A. § 46-2-33(c) provides that the amounts paid by regulated companies under this Code section shall be deemed a necessary cost of providing service, and the utility shall be entitled to recover the full amount of any costs charged to the utility pursuant to this Code section. O.C.G.A. § 46-2-33(c) further provides that, at the election of the utility, the utility shall be entitled to recover all such costs promptly through a reasonably designed rider designated for such purpose.

The Commission hereby determines that specialized testimony and assistance is required in Docket Nos. 56298 and 56310. Accordingly, the Commission hereby sets forth the initial scope and budget for such assistance as described below. It's anticipated that additional consultants will be added for areas not yet under contract including, but not limited to, the review of self-build cost reasonableness.

J. Kennedy and Associates	\$ 175,000
Daymark Energy Advisors	\$ 89,250
GPMA, LLC	\$ 92,000

Establishment of Fee

With regard to the establishment of a fee in a proceeding in which a utility is seeking a certificate, O.C.G.A. § 46-3A-5(c) states:

(c) Within 60 days after the filing of an integrated resource plan or an application has been made with the commission for a certificate or amendment, the commission shall establish a fee therefor and notify the applicant thereof. The fee amount so established shall be in an amount reasonably necessary to defray the expense of the commission in reviewing the plan or determining whether to grant the application, including but not limited to the expense of conducting any certification proceedings required for such application. The fee so established shall not be recoverable from ratepayers of the applicant if the application or certification is denied nor shall the fee for review of the plan or any subsequent amendment thereto be recoverable from ratepayers. Such fee must be remitted to the commission before the commission may take any further action upon the application. For purposes of any time periods established in subsection (b) of this Code section

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and subsection (c) of Code Section 46-3A-2, an application shall be deemed to have been filed only when the fee established therefore has been remitted to the commission. In the event a joint application is filed by more than one utility, a single such fee only shall be required. The funds assessed and collected pursuant to this subsection shall be deposited in the state's general fund.

Accordingly, the Staff shall estimate the cost to review the filing to accommodate Commission approval no later than September 16, 2025.

WHEREFORE, IT IS ORDERED, that the procedures and schedules contained within this Procedural and Scheduling Order are hereby adopted by this Commission.

ORDERED FURTHER, that Georgia Power shall file all models, workpapers, calculations and supporting material associated with its B2026 Load Forecast including, but not limited to, its Load Realization Model, no later than September 17, 2025.

ORDERED FURTHER, that the fee to be paid by Georgia Power Company on September 17, 2025 for the Commission's review of its Certificate filing shall be approved by the Commission on September 16, 2025.

ORDERED FURTHER, that a motion for reconsideration, rehearing or oral argument or any other motion shall not stay the effective date of this Order, unless otherwise ordered by the Commission.

ORDERED FURTHER, jurisdiction over this matter is expressly retained for the purpose of entering such further Order or Orders as this Commission may deem just and proper.

The above by action of the Commission in its Administrative Session on the 5th day of August 2025.

SALLIE TANNER
EXECUTIVE SECRETARY

JASON SHAW
CHAIRMAN

Date

Date